

The background is a solid dark blue. On the left side, there is a vertical rectangular band of a slightly lighter blue. On the right side, there is a large, semi-transparent light blue circle that overlaps the dark blue background and the lighter blue band.

Politics and Government of Thailand: Political Institutions

What's
happening
in Thai
politics



What's happening in Thai politics



What's happening in Thai politics

- The Constitutional Court voted 6:1, ruling that three referenda are required for the drafting of a new constitution.





THAILAND

POLITICAL SYSTEM



รัฐธรรมนูญแห่งราชอาณาจักรไทย
พุทธศักราช ๒๕๖๐



สำนักงานเลขาธิการวุฒิสภา
ปฏิบัติหน้าที่สำนักงานเลขาธิการสภานิติบัญญัติแห่งชาติ

Thailand's political system is a constitutional monarchy, operating under “a democratic regime with the King as Head of State.”

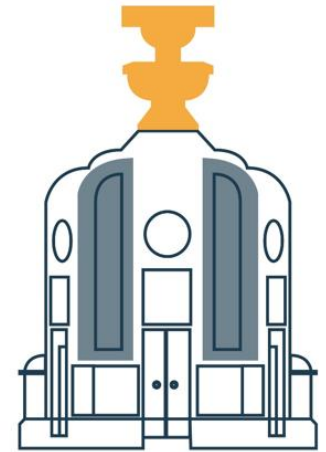
The foundation for this regime is Section 3 of the Constitution, which states that:

- Sovereign power belongs to the Thai people.
- The King, as Head of State, exercises this power through the National Assembly (Parliament), the Council of Ministers (Cabinet), and the Courts

This statement sets the stage for Thailand's separation of powers and institutional design.

The Monarchy (The KING)

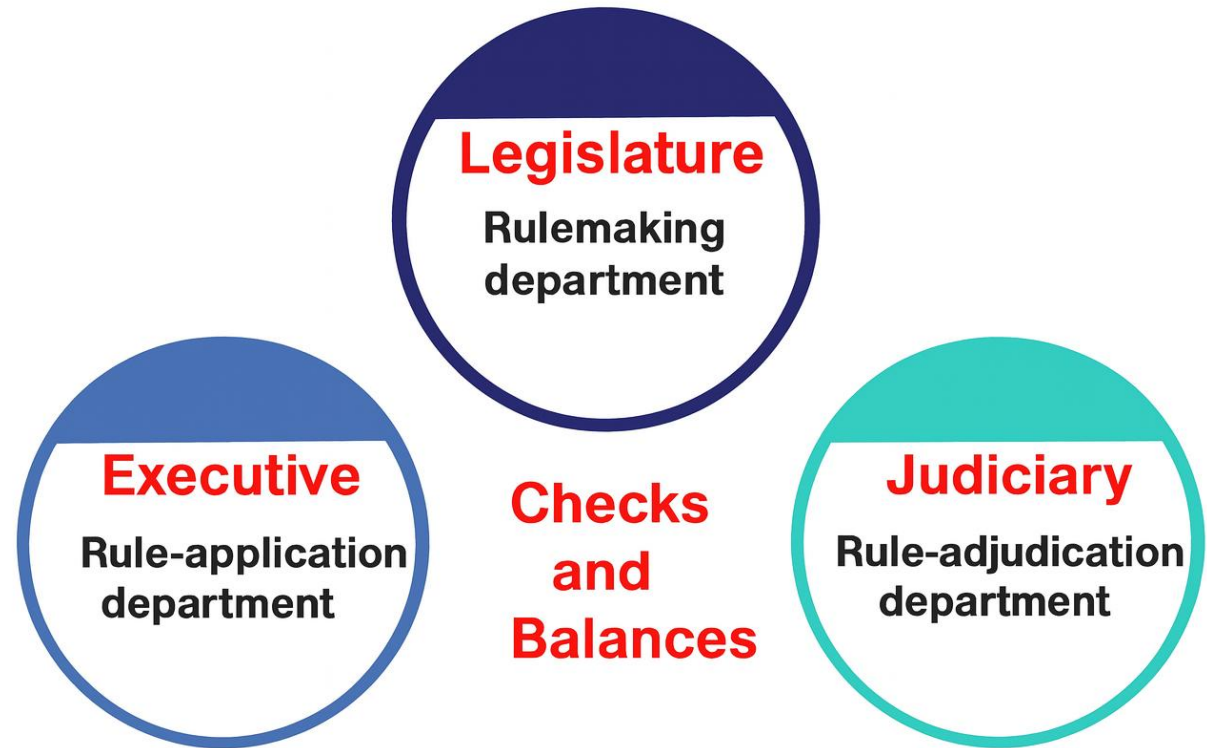
- The King is the **Head of State**.
- His role is largely **symbolic** and **ceremonial**, but he is regarded as a **unifying figure**.
- The monarchy operates **within the framework of the Constitution**, not as an absolute monarchy.



พระราชทาน:
ตามรัฐธรรมนูญ

Thailand
applies the
principle of
separation of
powers among
three main
branches

Separation of Powers- Checks and Balances





Legislative Branch: The National Assembly

Bicameral system:

- **House of Representatives** consists of:

400 members elected from constituencies, and 100 members elected from party lists.

- **The Senate** consists of:

200 members selected through an appointment process

[note: during the first five years of the Constitution, there are 250 members who were appointed by the Military Junta (NCPO) and also hold the authority to participate in the selection of the Prime Minister].

(สำหรับโรงเรียน)

ด้านใบของบัตรเลือกตั้งสมาชิกสภาผู้แทนราษฎรแบบแบ่งเขตเลือกตั้ง

เขต _____

อำเภอ _____

ตำบล _____

เลขที่ _____

(สำหรับโรงเรียน)

ด้านใบของบัตรเลือกตั้งสมาชิกสภาผู้แทนราษฎรแบบบัญชีรายชื่อ

เขต _____

อำเภอ _____

ตำบล _____

เลขที่ _____

บัตรเลือกตั้งสมาชิกสภาผู้แทนราษฎรแบบแบ่งเขตเลือกตั้ง

ให้ทำเครื่องหมายกากบาท "X" ภายใน "ช่องทำเครื่องหมาย" ไม่เกินหนึ่งคะแนน

หมายเลข ผู้สมัคร	ทำ เครื่องหมาย	หมายเลข ผู้สมัคร	ทำ เครื่องหมาย
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บัตรเลือกตั้งสมาชิกสภาผู้แทนราษฎรแบบบัญชีรายชื่อ

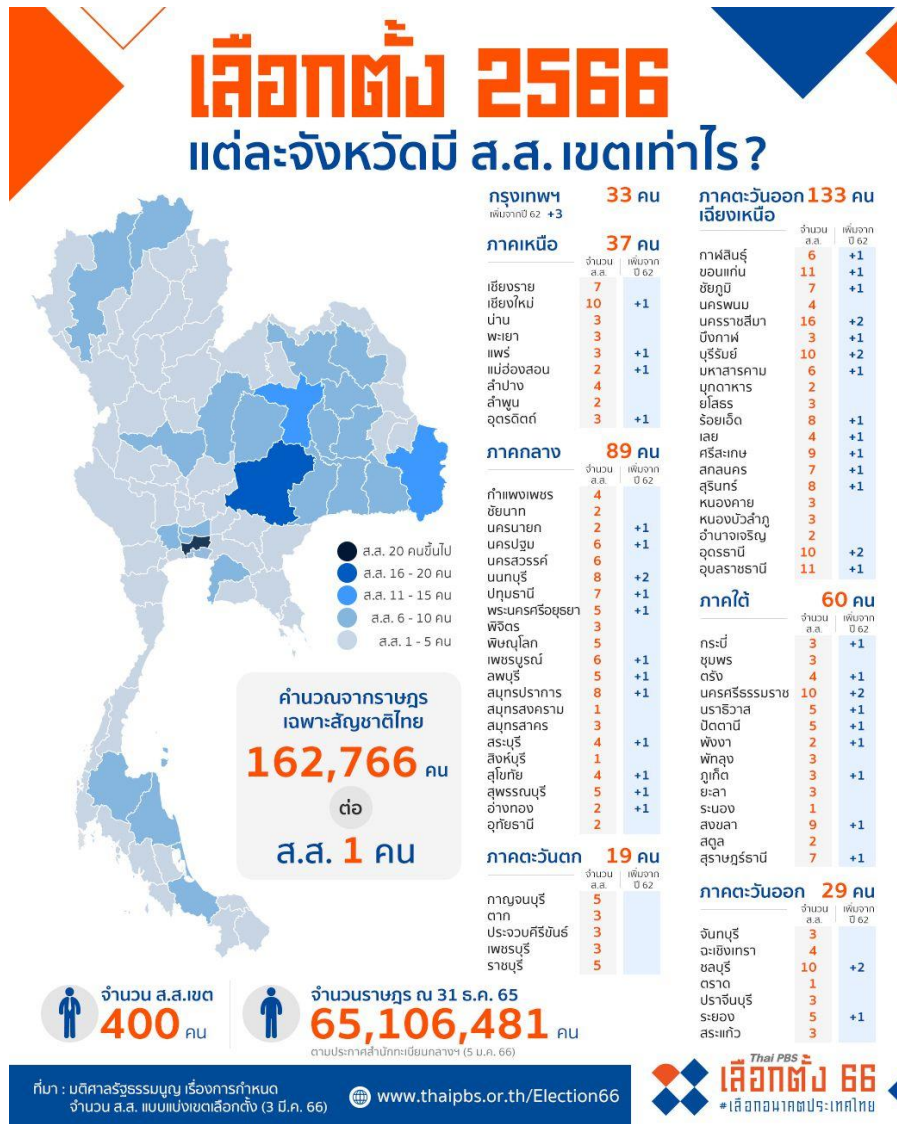
ให้ทำเครื่องหมายกากบาท "X" ภายใน "ช่องทำเครื่องหมาย" ไม่เกินหนึ่งคะแนน

หมายเลข พรรคการเมือง	ทำ เครื่องหมาย	หมายเลข พรรคการเมือง	ทำ เครื่องหมาย
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ถ้าประสงค์ออกเสียงคะแนน "ไม่เลือกผู้สมัครผู้ใด"
ให้ทำเครื่องหมายกากบาท "X" ในช่องนี้

ถ้าประสงค์ออกเสียงคะแนน "ไม่เลือกบัญชีรายชื่อของพรรคการเมืองใด"
ให้ทำเครื่องหมายกากบาท "X" ในช่องนี้

- The system combines two distinct electoral methods for different sets of seats, allowing voters to support different candidates or parties in each category.
- Voters receive two ballots at the polling station, one for constituency representatives and one for party-list representatives.



Constituency Members

400 members are elected from geographical areas called single-member constituencies.

General Principles for Drawing Electoral Constituencies

- **1. Population-to-Member Ratio**

The total population of the country is divided by the **400 constituency Members of the House** to find the **ratio of population per Member**.

- **2. Number of Districts per Province**

The population of each province is divided by the ratio from Step 1 to **calculate how many electoral constituencies that province should have**.

- **3. Adjusting to Reach 400 Constituencies**

If the total number of constituencies is still less than 400, extra constituencies are added to provinces with **the largest remainders (decimals) until the full 400 is reached**.

General Principles for Drawing Electoral Constituencies

- **4. Using Administrative Boundaries as the Basis**

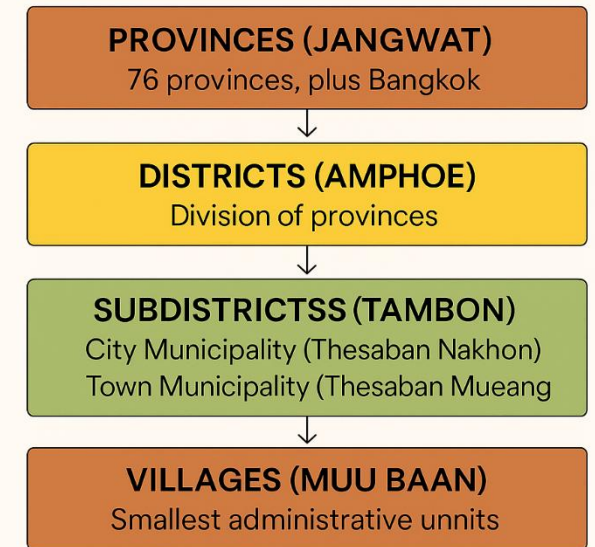
Electoral constituencies are mainly based on **district (amphoe) boundaries**, with two key rules:

- A **subdistrict (tambon)** must remain within one electoral constituencies.
- A **district (amphoe)** may be split into multiple electoral constituencies if needed.

- **5. Maintaining Existing Constituencies**

Efforts are made to **keep existing constituencies unchanged**, unless changes are necessary—for example, due to merging areas or changes in administrative boundaries.

Administrative Divisions of Thailand



3. Party-List Members

The other 100 members are selected from party lists to achieve proportional representation at the national level.

How Party-List Seats Are Calculated (Current System)

- Add up all votes from the nationwide party-list election.
- Divide that total by 100 → this gives the average number of votes needed for 1 seat.
- For each party: (1) Take the party's total votes. (2) Divide by the average number of votes per seat. (3) The whole number result = the party's initial number of seats.
- If fewer than 100 seats are filled: Look at the leftover votes (remainders) from each party. Give the remaining seats one by one to the parties with the largest remainders.
- Stop when all 100 seats are allocated.

How the House Members Election Works

4. Total Members

The system results in a House of Representatives with 500 elected members.

The senate

- The Senate is made up of **200 members** who are selected from among individuals with knowledge, expertise, experience, professional backgrounds, personal characteristics, or shared interests from different sectors of society.
- The grouping of candidates is arranged so that every eligible applicant can belong to at least one group

The Senator Selection Process

- Candidates must meet eligibility criteria, including being at least 40 years old with 10 years of experience in their field.

Key Characteristics:

- **Peer-to-Peer Selection:** Senators are not directly elected by the general public but by other selected individuals.
- **Professional Groups:** Candidates apply within one of 20 specified professional groups, such as education, agriculture, or public health, with 10 members per group will be finally selected.
- **Multi-Level Process:** The selection process involves district (Amphoe), provincial (Changwat), and national levels.

The Process

- **Application:**

Candidates apply within their chosen profession or interest group at their eligible district.

- **District Level (Initial Stage):**

Candidates within the same group vote for each other.

The top 5 candidates from each group advance.

- **District Level (Second Stage):**

Candidates are assigned to randomized groups from other districts.

They vote again, this time for candidates from these different groups.

The top 3 candidates from each group advance.

- **Provincial Level:**

This same process of voting within groups and random groups is repeated at the provincial level.

- **National Level:**

The process continues until a final national list of 200 senators is selected.



One day
arrangement

- 200 senators were selected indirectly from 20 professional and social groups, with 10 members per group, through a multi-round voting process from candidate pools within their respective groups.
- The term of the Senate is **five years** from the date the result of
- the selection is announced
- **The 100 reserve Senators** were chosen from candidates who were not selected as one of the 200 elected Senators, but who met the qualifications and followed the election procedures. The reserve list was formed after the main selection process concluded, ensuring a pool of eligible individuals **to fill any unexpected vacancies**.



Legislative – The National Assembly

- The legislature is the origin of the executive branch, because it (currently, the House) has the power to select the Prime Minister.
- It also serves as the main body that monitors and scrutinizes the work of the executive branch.

Mechanisms for Oversight (monitors and scrutinizes)

- **Policy Acknowledgment:**

The Council of Ministers (Cabinet) must state its policies to the National Assembly, which then has the opportunity to acknowledge and discuss them, providing an early stage of executive accountability.

- **Budgetary Control:**

The review and approval of the national budget provide a powerful tool for the legislature to monitor the executive's spending and ensure its policies are implemented responsibly.

Mechanisms for Oversight (monitors and scrutinizes)

- **Fact-Finding Committees:**

The National Assembly can establish **committees** to conduct investigations, study specific matters, and gather information on government activities, reporting their findings back to the assembly.

- **Questioning and Debate:**

Members of the legislature can **question** ministers and engage in **general debates and confidence debate** to scrutinize the government's policies and actions.

- **Approval of Key Matters:**

The legislature approves significant executive decisions, such as the declaration of war, the appointment of certain officials, and important treaties, giving it a role in shaping and controlling executive power.



อภิปรายงบประมาณ = Budget Debate

A process where elected representatives (MPs) review and question how public money will be spent, to ensure it is used effectively and transparently.



Government Budget Process in Thailand (2017 Constitution)

1. Drafting
(Executive)

2. First Reading
(House)

3. Committee Review

4. Second Reading
(House)

5. Third Reading
(House)

6. Senate Review

7. Royal Assent

8. Implementation
& Oversight

The process for **preparing, considering, and approving** Thailand's annual budget is outlined primarily in Sections 140–144 of the 2017 Constitution, supplemented by the State Fiscal and Financial Discipline Act B.E. 2561 (2018) and parliamentary rules.

Budget Preparation (Executive Stage)

- **Initiation:** The process begins with the **executive branch**. The Cabinet, through the **Bureau of the Budget** (under the Prime Minister's Office), prepares the **Annual Appropriations Bill**.
- **Guidelines:** The Cabinet sets budgetary priorities in line with the national strategy, development plan, and fiscal discipline law.
- **Drafting:** Ministries, departments, and agencies submit their budget requests. The Bureau of the Budget reviews, adjusts, and compiles them into a draft appropriations bill.
- **Timeframe:** The bill must be prepared in advance so it can be submitted to the House of Representatives **before the start of the fiscal year** (October 1).

Parliamentary Consideration

- **First Reading (Principle Approval)**
- The **House of Representatives** debates the bill in principle.
- If approved, a **Budget Scrutiny Committee** is appointed to examine details.
- Under **Section 144**, MPs may not propose any amendment that increases expenditure beyond what is proposed by the Cabinet, except for internal reallocation with Cabinet consent.
- **Committee Stage**
- The Budget Scrutiny Committee reviews each ministry's allocation and can recommend adjustments (within the constitutional limits).
- Ministers and agencies defend their proposals before the committee.
- **Second Reading (Section-by-Section Approval)**
- The House debates and votes on each section of the bill.
- **Third Reading (Final Approval)**
- The House votes on the bill as a whole. If approved, it is sent to the **Senate**.

Senate Consideration

- The Senate examines the bill but cannot amend it (Section 140).
- The Senate must complete its consideration within 20 days. If it does not act within this period, the bill is deemed approved.

Royal Assent

- Once both Houses approve, the bill is submitted to the **King** for Royal Assent and publication in the **Royal Gazette**.
- Upon publication, it becomes the **Annual Appropriations Act**.

Budget Execution and Oversight

- The Cabinet implements the budget according to the Act.
- The **State Audit Office** and parliamentary committees monitor spending for legality, efficiency, and transparency.

Key Constitutional Constraints (Section 144)

- MPs and senators cannot increase budget amounts.
- Any proposal that may increase expenditure must have the Cabinet's approval.
- The aim is to ensure fiscal discipline and avoid populist or unsustainable spending.



What's happening in Thai politics



What's happening between the Bhumjaithai Party and the People's Party?

What's happening in Thai politics



What's happening in Thai politics

What's happening
between the Pheu Thai
Party and the People's
Party?



Bangkok Post

Govt backs PP wish list

How did the People's Party weighs up its prime minister pick?



What's happening between the Pheu Thai Party and the People's Party?

TIMELINE: New PM Vote



Sep 3, 2025

People's Party backs **Anutin Charnvirakul** as **the new PM**.



Sep 3-5, 2025

The House of Representatives may include **the agenda to select a new PM**.



Sep 3, 2025

Pheu Thai prepares to **dissolve parliament**.
(Process pending royal endorsement/may face legal interpretation of dissolution power).

PHEU THAI'S STRATEGY BREAKDOWN:



People's Party



Bhumjaithai Party

Pheu Thai submits request to dissolve parliament.



Parliament votes for PM

Faces legal challenges.

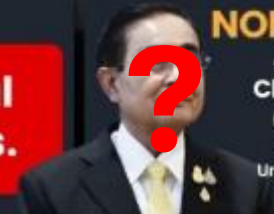
Assess the situation for 3 days

Initiate a new strategy

NOMINATE

Gen Prayut Chan-o-cha
(if he accepts)

Candidate from United Thai Nation Party.





Yesterday
&
Last night
?

The Prime Minister



The Process of selecting the Prime Minister in Thailand under the 2017 Constitution

- When the general election start, political party can nominate **up to three PM candidates** in advance to the Election Commission (ECT), and these names are published before voting day.
- After the election result approved by the ECT and the new House begins its job, **candidates from the political party that wins at least 5 percent of seats in the House** of Representatives can be nominated to be elected in the House Meeting for PM election.
- **If the PM disqualified from the position**, this process would repeat again and again until the house dissolved or finished its terms

ขั้นตอน

เลือกนายกฯ คนใหม่

หลังศาลรัฐธรรมนูญฟันเศรษฐกิจฯ ฟันตำแหน่ง

พรรคการเมืองที่มี สส. ในสภา
ไม่น้อยกว่า **5% (25 คน)**
เสนอชื่อแคนดิเดตนายกฯ
จากบัญชีของแต่ละพรรค
ที่เคยเสนอไว้ตอนเลือกตั้ง

ผู้ได้รับเลือกเป็นนายกฯ
จะต้องได้รับคะแนนเสียง
เกินกึ่งหนึ่งของจำนวน สส.
ทั้งหมดเท่าที่มีอยู่
หรืออย่างน้อย **248 เสียง**

แคนดิเดตนายกรัฐมนตรี



แพทองธาร ชินวัตร
ชัยเกษม นิติสิริ



อนุทิน ชาญวีรกูล



พล.อ.ประวิตร วงษ์สุวรรณ



พล.อ.ประยุทธ์ จันทร์โอชา
(ปัจจุบันเป็นองคมนตรี)
พีระพันธุ์ สาลีรัฐวิภาค



จรินทร์ ลักษณวิศิษฎ์



Today



Last time

Constitutional Court

- **A specialized judicial body** with the exclusive power to interpret the constitution, review the constitutionality of laws and government actions, and safeguard the rights and liberties of citizens.
- Unlike courts of general jurisdiction, a constitutional court's **primary role** is to ensure that all legislative acts, royal decrees, and administrative actions comply with the supreme constitutional law of the land.

A specialized judicial body ?

- Not every [democratic countries] has constitutional court
- Constitutional courts are found in more than 80 countries worldwide, particularly in civil law countries.
- The concept of a specialized constitutional court, following the model of Hans Kelsen, became significant after World War II and was influential in the democratic reconstruction of countries like Germany and Italy.



Key Functions:

Constitutional Review:

This is the primary function, where the court examines laws and government acts to determine if they are consistent with the constitution. The main purposes are to:

- **Protect of Rights and Liberties**

The court plays a vital role in protecting the fundamental rights and freedoms guaranteed by the constitution to the people.

- **Uphold the Rule of Law**

By ensuring that political organs and institutions adhere to the constitution, the court helps maintain the supremacy of constitutional law.

- **Adjudicate Constitutional Disputes**

The court resolves problematic issues of constitutionality that arise from legislation, regulations, or government actions.



Constitutional Court of Thailand

- The concept of a constitutional court in Thailand was modeled after European examples, such as the Constitutional Courts of Austria and Germany, and was first established by the 1997 Constitution.
- It then was re-established under the **2007** and **2017 Constitutions**, though with changing structures and powers.

Constitutional Court of Thailand according to the 2017 Constitution

- A specialized judicial body responsible for reviewing the constitutionality of laws and bills, ensuring the supremacy of the constitution, and adjudicating questions regarding the powers and duties of government bodies.
- It consists of a President and eight Justices who are approved by the Senate and appointed by the King.
- The court's powers include ruling on draft amendments to the Constitution and ensuring that governmental actions and laws align with the Constitution, which also protects human rights and liberties.

1. Supreme Court of Justice Judges

- **Selection:** Three judges are selected from the Supreme Court of Justice (SCJ) through a secret ballot by the SCJ's General Assembly.

2. Supreme Administrative Court Judges

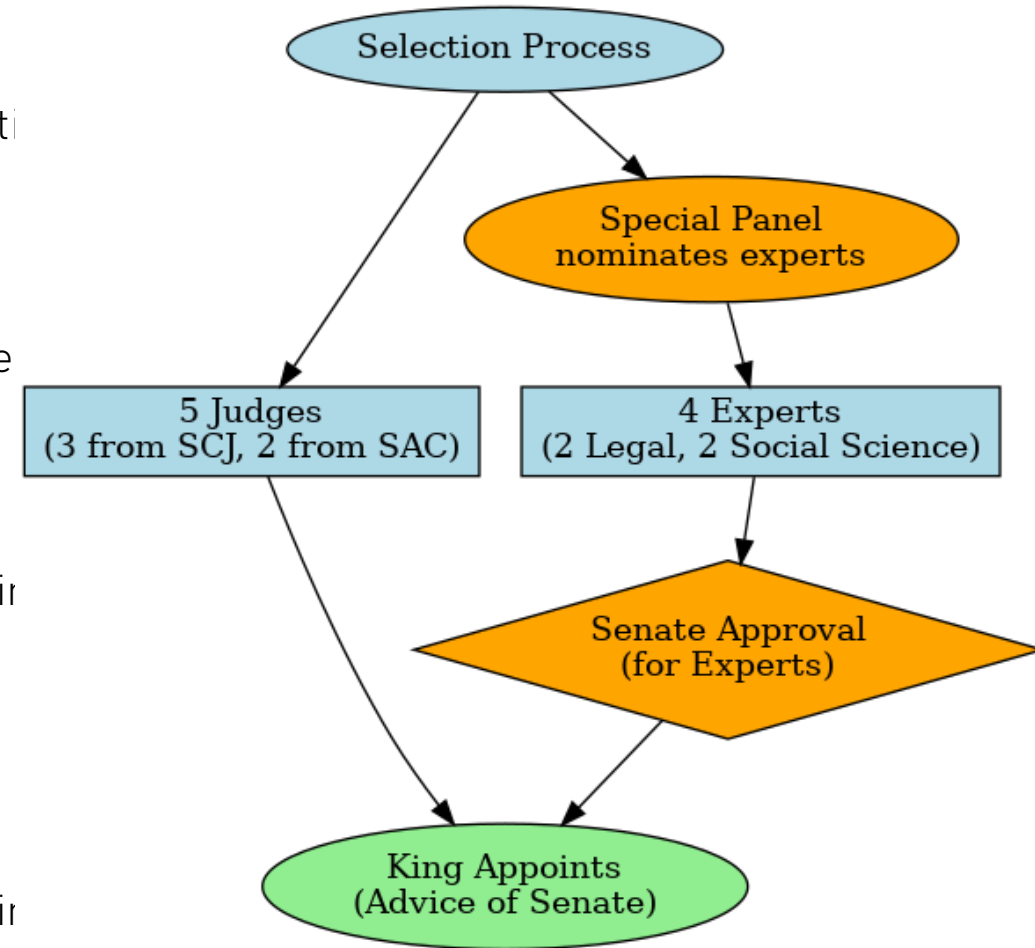
- **Selection:** Two judges are selected from the Supreme Administrative Court (SAC) through a secret ballot by the SAC's General Assembly.

3. Legal Experts

- **Selection:** A special panel nominates two individuals with expertise in field of law.
- **Approval:** The Senate must approve these nominations.

4. Social Science Experts

- **Selection:** A special panel nominates two individuals with expertise in like political science or public administration.
- **Approval:** The Senate must approve these nominations as well.

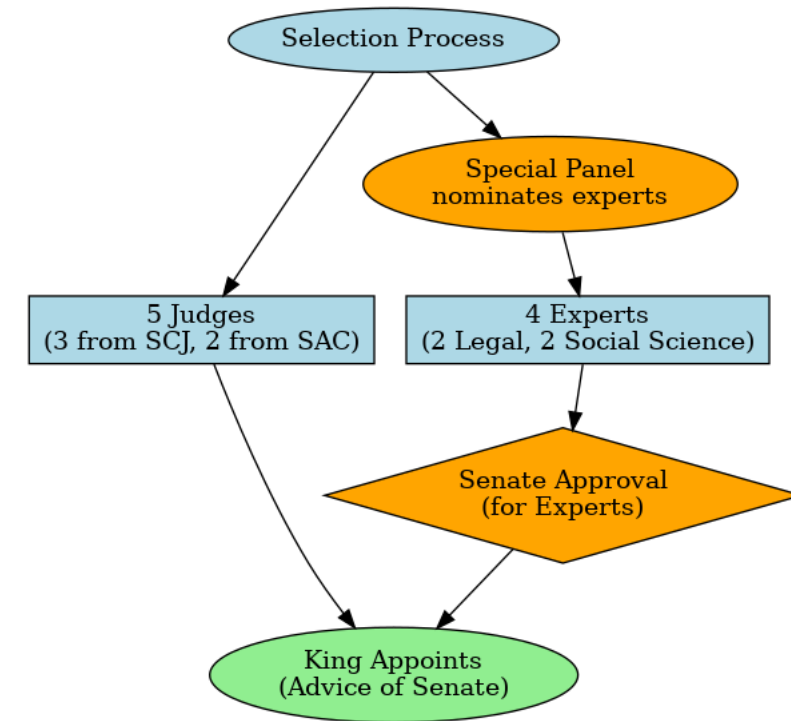


The Selection Panel

- The special panel that selects the legal and social science experts is composed of the President of the Supreme Court, the President of the Supreme Administrative Court, the President of the House of Representatives, the Leader of the Opposition, and the chiefs of certain constitutional independent agencies (like the Ombudsman or Election Commission).

The Appointment by the King

- Once the nominations are selected by the panels and **approved by the Senate**, they are submitted for the King's appointment. The King formally appoints the members of the Constitutional Court upon the advice of the Senate.



Key Functions and Powers

Constitutionality Review

- The court examines the legality of draft laws and existing laws to ensure they are consistent with the 2017 Constitution.

Powers of State Bodies

- It resolves disputes concerning the duties and powers of the House of Representatives, the Senate, the National Assembly, the Council of Ministers, and various independent organizations.

Constitutional Amendments

- The court reviews the conditions and procedures for amending the Constitution.

Constitutional Complaints

- It handles cases brought under the constitutional complaint mechanism, allowing citizens to enforce their rights and the state's compliance with the Constitution.

Qualifications for Political Positions

- The court rules on the membership and qualifications of individuals holding political positions.
- Structure and Appointments

Some critical events

- 2006 and 2008: Dissolution of Thai Rak Thai and People's Power Party, which were linked to Thaksin Shinawatra.
- 2014: Removal of Prime Minister Yingluck Shinawatra shortly before the military coup.
- 2020: Dissolution of the Future Forward Party, a popular reformist party, which sparked mass youth-led protests.
- 2023–2024: Cases concerning Move Forward Party and its stance on lèse-majesté reform, which highlight tensions between electoral mandates and constitutional limits.
- 2024: Disqualification of Prime Minister Setha Taweessin
- 2025: ?